

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: June 4, 2026

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1.	Schmitt v. Quintilone 24-1372117	The unopposed motions to be relieved as counsel of record for plaintiffs Brandon Schmitt and Clair Olson-Schmitt filed by Austiag H. Parineh and Parineh Law, APC are GRANTED. Moving counsel has complied with the procedural requirements of C.R.C. 3.1362. The Court finds good cause to grant the relief requested on the merits.

		Accordingly, the motions are GRANTED. The orders granting relief are effective upon filing of a proof of service of the signed orders on the clients. Moving counsel shall submit amended proposed orders that list the current trial date. <i>Moving counsel is ordered to give notice of these rulings.</i>
2.	Stewart v. Three Phase Electric, Inc. 22-1248530	Before the Court is a motion by Defendants Kimberly Weiss and Three Phase Electric, Inc. to vacate the default and default judgment entered against them. The motion is GRANTED, as set forth herein. <i>Code of Civil Procedure section 473</i>, subdivision (d), provides, "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." Even where relief is no longer available under statutory provisions, a trial court generally retains the inherent power to vacate a default judgment or order on equitable grounds where a party establishes that the judgment or order was void for lack of due process (<i>Ansley v. Superior Court</i> (1986) 185 Cal.App.3d 477, 488) or resulted from extrinsic fraud or mistake. (<i>Olivera v. Grace</i> (1942) 19 Cal.2d 570, 576-578; <i>Sporn v. Home Depot USA, Inc.</i> (2005) 126 Cal.App.4th 1294, 1300 (citing text); <i>Bae v. T.D. Service Co.</i> (2016) 245 Cal.App.4th 89, 97.) " '[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.] Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void. [Citation.]' [Citation.]' Under section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service. [Citations.]" (<i>Ellard v. Conway</i> (2001) 94 Cal.App.4th 540, 544" "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.' " (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413; Footnote 35 omitted.) Here, the proof of service at ROA 12 states that on 3/9/22, plaintiff personally served Three Phase Electric, Inc. by serving "CSC – Lai Saevang – Person Authorized to Accept Service of Process" at 2710 Gateway Oaks Drive, Suite 150N, Sacramento, CA 95833 at 1:39 p.m. Defendants submit evidence showing "That person is not, and has never been, an officer, employee, or authorized agent for service of process for Three Phase Electric, Inc. The address listed is not, and has